

Terms & Conditions

E-NAM is an online marketplace, owned by Ministry of Agriculture and Farmers' Welfare, Government of India., where registered users can buy and sell various agricultural commodities by means of flexible forward or reverse auctions. The users of E-NAM can list customized auctions, based on their specific quality and quantity requirements, in relation to the agricultural products (or any other tradeable goods which may be permitted by E-NAM to be traded on the Platform) they wish to sell or purchase on the online marketplace. E-NAM manages the entire process of sale and purchase, including but not limited to the processes of listing, selling, buying, settlement and processing of payments, etc. E-NAM also publishes information, links and opinions relating to the agricultural industry and the market.

Access to and use of the entire E-NAM ecosystem, including its website, mobile applications, digital products and services, plug-ins, etc., available on its platforms are governed by the terms and conditions set out herein below in this document ("Terms of Use" or "Terms"). These Terms of Use of E-NAM include the terms and conditions relating to:

- (a) the access to and use of E-NAM's website and mobile application ("General Terms"); and
- (b) the rules of auction of agricultural commodities on E-NAM's online platform ("Auction Terms") and
- (c) E-NAM's privacy policy ("Privacy Policy").

In these Terms, unless the context requires otherwise the following words and expressions shall have the following meanings:

Acceptance	shall have the meaning given to it at Clause 5.2 of Part B of these Terms;
Affiliates	in relation to any person, such person's officers, employees, directors, shareholders, parents, relatives, subsidiaries, holding companies, associates, agents, licensors, licensees and/or licensors;
E-NAM	National Agriculture Market (eNAM) is a pan-India electronic trading portal which networks the existing APMC mandis to create a unified national market for agricultural commodities. Small Farmers Agribusiness Consortium (MINISTRY OF AGRICULTURE AND FARMERS' WELFARE, GOVERNMENT OF INDIA.) is the lead agency for implementing eNAM under the aegis of Ministry of Agriculture and Farmers' Welfare, Government of India.
App	means the mobile application of E-NAM available through Google Playstore and App Store, including any updates and version changes thereto, from time to time;
Auction Terms	has the meaning given to in the Preamble and it is set out at Part B of these Terms of Use;
Authorised Representative	has the meaning given to it in Clause 2.3.2 of Part A of these Terms;
"Bidding" or "Bid"	has the meaning given to it at Clause 3.2 of Part B of these Terms;
Buyer	means an User who lists an auction on the Platform for buying Commodities;
Successful Bidder	The highest bid submitted buyer for a lot is called as successful bidder
Commodities	has the meaning given to it in Clause 1.1 of Part A;

Company Warranties	means representations and warranties given by a corporate User, which are set out at Clause 9 of Part B of these Terms;
Company	means MINISTRY OF AGRICULTURE AND FARMERS' WELFARE, GOVERNMENT OF INDIA., including any of its successors and permitted assigns;
Confidential Information	has the meaning given to it in Clause 12.2 of Part B of these Terms;
Contract Confirmation	has the meaning given to it in Clause 5.3 of Part B of these Terms;
Mutually Agreed terms	means the terms of an auction agreed between a Buyer and a Seller;
Dispute	has the meaning given to it in Clause 14.1 of Part A of these Terms;
Intellectual Property	means: (a) any invention (whether patentable or unpatentable and whether or not reduced to practice), any improvement thereto, and any patent, patent application, and patent disclosure, together with any reissuance, continuation, continuation-in-part, revision, extension, and re-examination thereof; (b) any trademark, service mark, trade dress, logo, trade name, and corporate name, together with any translation, adaptation, derivation, and combination thereof and including any goodwill associated therewith, and any application, registration, and renewal in connection therewith; (c) any copyrightable work, any copyright, and any application, registration, and renewal in connection therewith; (d) any mask works and any application,

	registrations, and renewals in connection therewith; (e) any trade secret and confidential business information (including any idea, research and development, know-how, formula, compositions, manufacturing and production process and technique, technical data, design, drawing, specification, customer and supplier lists, pricing and cost information, and business and marketing plans and proposals); (f) any computer Software (including data and related documentation), databases, programming, codes and schemas; (g) any other proprietary right; (h) any copies and tangible embodiments thereof (in whatever form or medium); (i) any license or sublicense of an Intellectual Property right, whether exclusive or non-exclusive to us; (j) internet domain name registrations and rights; and (k) any Software, features, design, programming, application, development work and/or promotion, advertising which in any way contributes/supports, tests, helps the business of E-NAM whether developed by a third party or employees of E-NAM or outsourced by us;
Listing Auctions	has the meaning given to it in Clause 2.1 of Part B of these Terms;
Offer	has the meaning given to it in Clause 5.1 of Part B of these Terms;
"Our" or "our"	means E-NAM, including any of its successors and permitted assigns;
Personal Information	has the meaning given to in Part C of these Terms;

Platform	has the meaning given to it in Clause 1.1 of these Terms;
Privacy Policy	has the meaning given to in the Preamble and it is set out at Part C of these Terms of Use;
Rules	has the meaning given to in Clause 14.2 of Part A of these Terms;
Penal Action/Sanctions	means any laws, regulations, decrees, ordinances, prohibitions, orders, demands, requests, rules or requirements of the other countries that is applicable relating to trade sanctions, foreign trade controls, export controls, non-proliferation, antiterrorism and similar laws;
Seller	means an User who lists an auction on the Platform for selling Commodities;
Transaction Fees	has the meaning given to it in Clause 4 of Part A of these Terms;
Services	has the meaning given to it in Clause 1.1 of Part A of these Terms;
Site	means the E-NAM website at _____, including any updates, changes, modifications, etc., thereto, from time to time;
Software	means any and all computer programs in both source and object code form, including all modules, routines and sub routines thereof and all related source and other preparatory materials, including user requirements, functional specifications and programming specifications, ideas, principles, programming languages, algorithms, flow charts, logic, logic diagrams, orthographic representations, file structures, coding sheets and coding, including

	any manuals or other documentation relating thereto and computer generated works;
"Terms" or "Terms of Use"	has the meaning given to it in the Preamble to these Terms;
"Us" or "us"	means E-NAM, including any of its successors and permitted assigns;
User Content	means any content that the Users (including you) share, communicate, upload or make available by entering information in the Platform and/or provide to us while registering for or availing any Services. User Content includes communications with other Users and with E-NAM, plus any links, personal information, images, videos, and information provided by Users on User profiles;
"User" or "user"	means any individual or incorporated/registered entity (along with its authorized representatives), which is registered on the Platform in accordance with these Terms, and which shall include any Buyers or Sellers;
"We" or "we"	means E-NAM, including any of its successors and permitted assigns;
Working Day	means a day (other than a Saturday, Sunday or a public holiday in the Republic of India) when banks are open for business; and
"You" or "you"	means the User.

Unless the context requires otherwise:

(a) Headings are for ease of reference only and shall not affect the meaning or interpretation of the Terms;

(b) Words in the singular shall include the plural and vice versa; and

(c) The words "include" and "including" shall be construed without limitation.

PART - A

1. INTRODUCTION

1.1 This Part A sets out the general terms which govern your access to and use of the following: (a) the E-NAM website (**www.enam.gov.in**) (the "Site"); (b) the E-NAM mobile application (the "App") (collectively, (a) and (b) are referred to herein after as the "Platform" which also includes or will include any other medium through which E-NAM chooses to offer its products and services to its users/customers); (c) the online applications and digital products made available on the Platform, where the User can enter into an online transaction for the sale and purchase of All Agriculture and Horticulture crops ("Commodities"); and (d) any other services offered or may be offered by E-NAM -- directly or indirectly - through any of its Affiliates or third parties, via any medium ("Additional Services") (collectively, (a), (b), (c) and (d) above are herein after referred to as the "Services").

1.2 For avoidance of doubt, E-NAM provides the Platform and/or the Services for facilitating the sale and purchase of the Commodities between the Buyers and the Sellers. E-NAM is neither a Seller nor a Buyer of any Commodities on the Platform.

1.3 BY USING THE PLATFORM OR THE SERVICES, INCLUDING BY REGISTERING AS A USER, YOU (ON BEHALF OF YOURSELF AND THE BUSINESS YOU REPRESENT) ARE CONFIRMING THAT YOU ACCEPT AND AGREE TO THESE TERMS AND ARE ENTERING IN THIS LEGALLY BINDING CONTRACT, AS AMENDED FROM TIME TO TIME, AND THAT YOU SHALL COMPLY WITH AND BE BOUND BY THESE TERMS. IF YOU DO NOT ACCEPT OR AGREE TO COMPLY WITH AND BE BOUND BY THESE TERMS, YOU MUST NOT ACCESS OR USE THE PLATFORM AND/OR THE SERVICES.

1.4 PLEASE READ THESE TERMS CAREFULLY NOW AND FROM TIME TO TIME FOR ANY UPDATES. WE RECOMMEND THAT YOU PRINT A COPY OF THESE TERMS, AND ANY FUTURE VERSIONS, FOR YOUR REFERENCE.

1.5 These Terms refer to and include the following additional policies and/or terms, which shall also apply to you and your access to and use of the Platform and/or the Services:

1.5.1 OUR PRIVACY POLICY, to be found at Part C of these Terms, sets out the terms on which we process and hold data collected from you which you provide to E-NAM while signing up and using the Platform and/or Services. By using the Platform and/or the Services, you consent to the processing of your data in accordance with our Privacy Policy. In this regard, you also represent and warrant that all data provided by you to us is true, accurate, correct, complete and not misleading; and

1.5.2 AUCTION TERMS, to be found at Part B of these Terms, sets out the terms and conditions relating to the auction process on the Platform and/or the Services for buying and selling Commodities.

1.6 WE MAY AMEND OR MAKE CHANGES TO THESE TERMS AND/OR ANY POLICY FROM TIME TO TIME.

1.7 We may amend these Terms and/or any policy from time to time. If we change these Terms and/or policies, we will give you notice via e mail as soon as practicable prior to the implementation of such changes and the posting of the revised Terms and/or policy on the Platform, except in such cases in which the changes are required by the law, or by a governmental or judicial authority; in which event, the notice will be given after posting the revised Terms and/or policy on the Platform. Any such changes will come into effect on the revision date stated in the revised Terms and/or policies. By continuing to access or use the

Platform and/or the Services, you are or will be agreeing to the revised Terms and/or policies.

1.8 We recommend that you read the Terms and/or policies to ensure you understand the Terms that apply to you at any time you access, use or transact business via the Platform or avail our Services.

2. USERS OF THE PLATFORM AND SERVICES

2.1 The Platform and the Services are addressed, and made available, to the Users.

2.2 Any person or entity wanting to access or use the Platform shall first need to register on the Platform to become a User of the Platform and/or the Services.

2.3 To become a User and participate in the Platform and/or avail the Services, a person shall be required to submit specified details (as may be amended from time to time) to meet the registration requirements as listed on the Platform

Registration shall be completed and submitted only by an authorized representative or any other person with legal authority to bind the entity which is applying to become a User ("Authorized Representative") and such persons shall be required to provide their name, Aadhar card copy or any government issued identity proof, contact number, e mail address and a copy of the authorizing board resolution, power of attorney or any other document on the letterhead of the entity conferring the authority on the individual to act on behalf of the entity in relation to the Platform and/or the Services.

The Privacy Policy and Payment Gateway Terms and Conditions contained herein shall apply to any User, using the services of the Platform for making payments through the online payment gateway service offered jointly by Axis Bank Ltd or any other bank authorized by E-NAM and Payment Gateway Service provider, deemed to have read and accepted these Terms and Conditions.

2.4 In addition to the details required under clause 2.3 above, E-NAM may require any individual or entity wishing to become a User for (a) providing further documentation for 'know your customer' purposes; (b) verifying the existence and capacity of a corporate entity registering to become a User; and/or (c) verifying the authority of the Authorized Representative acting on behalf of the entity wishing to become a User.

2.5 E-NAM shall have the sole and absolute discretion whether to accept an individual or corporate entity as a User. E-NAM reserves the right to reject any application for registration, without giving reasons or cause.

2.6 E-NAM reserves the right to deny any User access to the Platform and/or the Services, without giving reasons or cause.

2.7 On receipt of all the details required under clause 2.3 and clause 2.4 above to the satisfaction of E-NAM, and subject always to E-NAM's rights under clause 2.5 above, E-NAM will provide a username and a password to the User.

2.8 By registering with the Platform, each User represents and warrants that:

2.8.1 in case of individuals, you are over 18 years of age;

2.8.2 you have the authority and/or the relevant authorizations required to register and operate on the Platform and/or avail the Services, as applicable;

2.8.3 you have complied, and shall continue to comply, with all applicable law to access and use the Platform and/or avail the Services; and

2.8.4 any information provided by you is true, accurate, correct, complete and not misleading.

2.9 A User will be provided with one username and password. However , registered mobile number of the user shall be by default username . OTP shall be password for that particular mobile number.

2.10 Users must update E-NAM of any changes in their personal or corporate information immediately following any such change.

2.11 Users shall keep their username and password confidential, safe and must not disclose it to any third party. Any unauthorized use of the User's username and password shall be attributable to the User and it shall not be the responsibility of E-NAM. Any losses arising due to such use shall be borne by the User alone.

2.12 If you know or suspect that your username or password may have been compromised or made public, you shall notify E-NAM immediately at the address specified below so that we may take any appropriate steps, including cancelling any compromised or potentially compromised username or password.

2.13 E-NAM shall have the right to disable any username or password at any time, if, in our opinion, you have failed to comply with any of the provisions of these Terms.

2.14 You are solely responsible for any actions of an unauthorized user using your username or password on the Platform and/or for availing the Services.

3. CONTENT ON THE PLATFORM AND/OR RELATING TO THE SERVICES

Your use of the Platform and/or the Services and the User Content is at your sole risk

3.1 User Content, whether publicly posted or privately transmitted, is the sole responsibility of the Users who originate such User Content. You understand and acknowledge that you are solely responsible for any User Content you provide to or use on the Platform and for any consequences thereof.

3.2 E-NAM is under no obligation to review or monitor any User Content, although we may do so from time to time at our sole discretion. E-NAM has no obligation to protect any User Content.

3.3 You agree, represent and warrant that your User Content does not infringe the intellectual property rights, privacy rights, publicity rights or other legal rights of any third party.

3.4 We may refuse to accept or transmit User Content for any reason at our sole discretion.

3.5 We may remove User Content from the Platform and/or any portal where the Services are provided for any reason at our sole discretion.

Ownership of all other content

3.6 Other than User Content, E-NAM owns, or holds licenses to, all rights, title, and interest in the Intellectual Property in relation to the Platform and/or Services.

3.7 Our Intellectual Property relating to the Platform and the Services are all protected under the applicable copyright, trademark and other applicable laws. All rights in relation to our Intellectual Properties are reserved. You shall not duplicate, copy, or reuse our Intellectual Property, or any portion of the HTML/CSS, JavaScript source code, programming or visual design elements or concepts without express written permission from E-NAM.

Advertising content

3.8 The Platform and/or any portal where any of the Services are provided by E-NAM may include advertisements, which may be targeted to the content or information on the Platform (including User Content), questions raised through the Platform and/or while using the Services or any other information in relation thereto. The types and extent of advertising by E-NAM on the Platform are at the sole discretion of E-NAM and are subject to changes from time to time.

Content removal; cooperation with law enforcement

3.9E-NAM shall have the right:

3.9.1 to block, remove or refuse to distribute any content or User Content for any reason or no reason in our sole discretion;

3.9.2 to take any action with respect to any content or User Content that we deem necessary or appropriate in our sole discretion, including if we believe that such content or User Content: (a) violates these Terms; (b) it infringes any Intellectual Property right or other right of any person or entity; (c) threatens the personal safety of the Users of the Platform and/or the Services or the safety and security of the general public; or (d) creates any liability or threatens to create any liability for E-NAM ;

3.9.3 subject to the terms of our Privacy Policy and any applicable law to disclose any information provided by a User to E-NAM, including any personal information, to any third party who claims that User Content provided by you has violated that third party's rights, including that third party's intellectual property rights or its right to privacy, provided that we shall send prior notification to the User if practicable;

3.9.4 to take any appropriate legal action, including disclosing your personal information or other information about you to any law

enforcement body, government department, court of law, regulatory agency, tribunal or any law enforcement or government official, in respect of any suspected illegal or unauthorized use of the Platform and/or the Services;

3.9.5 to terminate or suspend your access to all or part of the Platform and/or the Services, and to reclaim and redistribute usernames, for any or no reason, including without limitation, for any violation of these Terms;

3.9.6 without prejudice to the above, to fully cooperate with any law enforcement or regulatory authority or court order requesting or directing E-NAM to disclose the identity, or other information, of anyone posting or distributing any User Content on or through the Platform and/or the Services. We also reserve the right to access, review, monitor, display, read, preserve, store and disclose any information and any User Content as we reasonably believe is necessary or appropriate to:

(i) satisfy any applicable law, regulation, legal processor governmental request;

(ii) investigate potential violations of and/or enforce these Terms;

(iii) detect, prevent, or otherwise address fraud, security or technical issues, or

(iv) protect the rights, property or safety of any Users, E-NAM or any third parties.

3.9.7 YOU WAIVE AND HOLD HARMLESS E-NAM AND/OR ITS AFFILIATES FROM ANY CLAIMS RESULTING FROM ANY OF THE ACTIONS OR ACTIVITIES LISTED IN THIS CLAUSE 3.9, OR ACTION WE OR OUR AFFILIATES TAKE DURING OR AS A RESULT OF ANY INVESTIGATIONS.

3.9.8 We assume no liability for any action or inaction regarding transmissions, communications or User Content provided by any User of the Platform and/or the Services or by any third party. We have no liability or responsibility to any person for the performance or non-performance of the activities described in this Clause.

4. YOUR LIMITED LICENSE TO THE PLATFORM, SERVICES AND THE CONTENT

4.1 Subject to and conditional upon your compliance with these Terms, we grant you a limited, non-exclusive, non-transferable license to access and view the Platform, User Content and our Intellectual Property solely in connection with your permitted use of the Platform and/or the Services.

4.2 You shall not download, capture, save, distribute or broadcast any of our Intellectual Property or any other person's User Content. You shall only download, capture, and/or save your User Content while only using the tools we make available for such purpose through the Platform. You also cannot use derivative works of your User Content outside the Platform without the express prior written permission from E-NAM.

4.3 Except as expressly permitted in these Terms, you shall not:

4.3.1 copy, modify, or create derivative works based on the Platform and/or the Services;

4.3.2 distribute, transfer, sublicense, lease, lend, or rent the Platform and/or the Services to any third party;

4.3.3 reverse engineering, decompile, or disassemble the Platform and/or the Services; and/or

4.3.4 make the functionality of the Platform or the Services available to multiple Users through any means. We reserve all rights in and to the Platform and the Services.

5. LINKS

5.1 The Platform and the Services may contain links to other websites and online resources provided by third parties. A link to a third party's website is provided for information only and it does not mean that we approve, endorse or are affiliated to that website/portal or approve of the information contained therein. We have no control over and are not responsible for the content of such websites/portals or any information provided by third parties. We shall not be liable for any damage or loss caused to you or your business, from your use of any third-party websites, portals or information. You shall be responsible for always reading the terms and conditions and the privacy policy of such a third-party websites or portals, before using them.

6. ACCEPTABLE USE OF THE PLATFORM AND SERVICES

6.1 You are responsible for your use of the Platform and the Services, and for any use of the Platform or the Services made using your account. Our goal is to create a positive, useful, and safe user experience. To promote this goal, we prohibit certain kinds of conduct or User Content that may be harmful to other Users, E-NAM or the general public. When you use the Platform and/or the Services, you shall not:

6.1.1 violate any law or regulation;

6.1.2 violate, infringe or misappropriate any person's intellectual property, safety, health, privacy, reputation or other legal or natural rights;

6.1.3 upload, communicate, transmit or otherwise make available any content that is or could reasonably be viewed as unlawful, harmful, harassing, defamatory or otherwise objectionable, pornographic, obscene, indecent, invasive of another's privacy, hateful, likely to incite violence or racial or ethnic hatred, or otherwise objectionable;

6.1.4 send unsolicited or unauthorized advertising or commercial communications, such as spam, forge any TCP/IP packet header or any part of the header information in any e mail or posting, or in any way use the Platform or the Services to send altered, deceptive, or false source identifying information;

6.1.5 engage in 'spidering' or 'harvesting' or participating in the use of Software, including spyware, designed to collect data from the Platform or Services;

6.1.6 collect any information about or regarding other Users including but not limited to any personal data or information;

6.1.7 interfere with or disrupt the smooth functioning of the Platform or interfere with, or disrupt, (a) the Services, (b) other Users' access, or (c) the servers or networks through which the Platform or the Services are provided;

6.1.7A A transmit any viruses or other computer instructions or technological means whose purpose is to disrupt, damage, or interfere with the use of computers or related systems in connection with the Platform and/or the Services;

6.1.8 stalk, harass or harm any individual connected to the Platform and/or the Services, including other Users or the personnel of E-NAM;

6.1.9 impersonate any person or entity (including other Users or the personnel of E-NAM or perform any other similar fraudulent activity, such as phishing;

6.1.10 use any means to 'scrape', 'crawl' or 'hack' any web pages relating to the Platform and/or Services and/or E-NAM;

6.1.11 probe, scan, crack, track and/or test the vulnerability of any system or network, attempt to circumvent any technological measure or authentication measures implemented to protect the Platform and/or the Services by E-NAM or any of our providers or any other third party (including another User);

6.1.12 access or search or attempt to access or search the Platform or the Services by any means (automated or otherwise) other than through the formats or interfaces prescribed, published or provided by E-NAM on its Platform, and such access or search or attempt to access or search the Platform shall only be pursuant to these Terms;

6.1.13 attempt to decipher, decompile, disassemble, or reverse engineer any of the Software or other underlying code used to provide the Platform and/or the Services;

6.1.14 use the Platform and/or the Services in any other way not permitted by these Terms; or

6.1.15 advocate, encourage, or assist any third party in doing any of the foregoing.

7. TERMINATION AND SURVIVAL

7.1 Use of the Platform and/or the Services is a privilege. We may decline to register you as a User, terminate your registration and/or restrict your access to

or usage of the Platform and/or the Services (including via any other aliases you use) at any time at our complete and sole discretion without consulting with you. Notwithstanding Clause 8.1 above, we consider the following as grounds for refusal of access or use of the Platform:

7.1.1 if complaints are received about you;

7.1.2 if you breach these Terms and/or any other E-NAM policies;

7.1.3 if you violate or threaten to violate any law;

7.1.4 if you cause or threaten to cause harm to public order, health and safety of the general public or of E-NAM employees or other Users;

7.1.5 if you cause or threaten to cause harm to E-NAM's business, the Platform or the quality of the Services;

7.1.6 any other reason in the reasonable assessment of E-NAM.

8 We reserve the right to not provide you with access to the Platform and/or the Services. We also reserve the right to terminate any User's right to access the Platform and/or the Services at any time, at our sole discretion, if you violate any of these Terms and/or E-NAM's policies. Further, if we receive complaints about you, we may terminate your registration and your ability to use the Platform and/or Services, at our sole discretion.

8.1 You may end this legally enforceable agreement with E-NAM at any time for any reason, by (a) discontinuing the use of the Platform and/or Services, (b) informing E-NAM about such discontinuation, and (c) requesting us to delete your account by sending an e mail or a letter at the contact details of E-NAM set out in Clause 16 of Part A of these Terms.

8.2 The provisions "Content on the Platform and/or Services", "Acceptable Use of the Platform and Services", "Privacy Policy", "Indemnity", "Termination and

Survival", and "Other Provisions" will survive the closure/deletion of your account and any expiration or termination of these Terms, and you will continue to be responsible for all of your activities during the time you used the Platform and/or the Services.

9. YOUR INDEMNITY

9.1 At any time after your registration, including after the termination of your registration with E-NAM for cause, you agree to indemnify and hold harmless E-NAM, its employees and its Affiliates, from and against any and all claims, costs, proceedings, demands, losses, damages, and expenses (including, without limitation, attorney's fees, and legal costs) of any kind or nature, arising from or relating to:

9.1.1 any actual or alleged breach of these Terms by you or anyone using your account; and/or

9.1.2 your use of the Platform and/or the Services; and/or

9.1.3 the content of your uploaded information; and/or

9.1.4 the negotiation, performance or enforcement of any contract or agreement or understanding between you and other Users via the Platform or through the use of our Services; and/or

9.1.5 the transfer of Commodities and/or money between you and another User.

9.2 The rights and remedies of E-NAM, its employees and/or its Affiliates, in respect of any breach of these Terms, shall not be affected by any act or happening which otherwise might have affected such rights and remedies, except by a specific written waiver by E-NAM, its employees and/or its Affiliates.

9.3 The rights of indemnification of E-NAM, its employees and/or its Affiliates hereunder shall be in addition to all other rights available to E-NAM, its employees and/or its Affiliates in law, equity or otherwise, including without limitation rights of specific performance, recession and restitution.

9.4 The Users shall not pursue any claim, seek damages, reimbursements or contribution from E-NAM, its employees and/or its Affiliates, in respect of any claim costs, proceedings, demands, losses, damages, and expenses (including, without limitation, reasonable attorney's fees, and legal costs) of any kind or nature, arising from or relating to the actions of other Users or from their dealings with other Users.

10. DISPUTES AMONG USERS

10.1 If a dispute arises between you and another User, you must resolve it in accordance with the applicable law of the jurisdiction agreed upon between the parties to the terms and conditions (Part -A, Part -B, and Part-C) of the e-NAM platform and also as per the terms and conditions mutually agreed by the concerned parties. You hereby agree to release and hold harmless E-NAM and its, employees, directors and Affiliates, from any and all claims, demands, and damages (including, without limitation, actual and consequential) of any kind or nature, indirect or direct, unknown or known, unsuspected or suspected, undisclosed or disclosed, arising out of or in any way connected with any such dispute.

11. DISCLAIMERS

11.1 The Platform and/or Services are provided on an "as is" and "as available" basis. To the extent permitted by any applicable law, E-NAM, its employees, directors and affiliates disclaim all warranties, conditions, and representations of any kind whatsoever, whether express, implied, statutory, or otherwise, including those relating to merchantability, fitness for a particular purpose, non-

infringement and all warranties, conditions, and representations arising out of course of dealing or usage of trade.

11.2 All information provided on the Platform and/or via the Services is for general information purposes only. The information should not be interpreted as individualized advice, investment recommendation and/or farming or agriculture consultation. E-NAM does not offer investment, farming, or business advice or consultations. None of the information found on the Platform, and/or on any of the portals through which any of the Services are provided, should be considered a recommendation, sponsorship, endorsement or any business of any nature and/or any financial derivative of any nature.

11.3 E-NAM shall use all reasonable endeavours to ensure that all material and information presented on the Platform, and/or via the portals through which Services are provided, is taken from sources believed to be reliable and all information is presented in good faith, however E-NAM makes no warranty or representation, either expressed or implied, in relation to the correctness, completeness, or accuracy of such information or material.

11.4 E-NAM will have no liability for any:

11.4.1 errors, mistakes, or inaccuracies of content; on the Platform or in relation to the Services;

11.4.2 negligence, breach of contract, warranties, errors, mistakes, or omission of the Users;

11.4.3 injury (personal or otherwise), property damage or loss of data resulting from your access to or use of the Platform and/or the Services;

11.4.4 unauthorized access to or use of the Platform, the Services, our servers or of any personal information, auction data, or User Content;

11.4.5 interruption of transmission to or from the Platform or via the Services, or any deletion of or failure to store or transmit any content or communications;

11.4.6 bugs, viruses, trojan horses, or similar which may be transmitted on or through the Platform or via the services by any third party;

11.4.7 failure of the Platform and/or the Services to meet User expectations or requirements; or

11.4.8 loss or damage of any kind incurred as a result of the use of any content posted or shared through the Platform or the Services. You understand and agree that any material or information downloaded or otherwise obtained using the Platform and/or the Services is done at your own risk and that you shall be solely responsible for any damage arising from doing so. No advice or information, whether oral or written, obtained by you from E-NAM or through the Platform and/or the Services will create any warranty not expressly made in these Terms.

11.5 To the extent permitted by law, under no circumstances E-NAM will be liable to you or to any third party for any indirect, special, incidental, punitive, or consequential loss or damages (including for any loss of profits, goodwill revenue, or data) or for the cost of obtaining substitute products or services or for any cost or liability arising out of or in connection with these Terms, the Platform and/or the Services, howsoever caused, whether such liability arises from any claim based upon contract, warranty, tort, including negligence, breach

of statutory duty or otherwise, and whether or not E-NAM has been advised of the possibility of such loss or damages.

11.6 To the extent permitted by law, our total cumulative liability to you or any third party arising out of or in connection with these Terms, the Platform and/or the Services, from any and all causes of action claims (including contract, warranty, tort, negligence, breach of statutory duty or otherwise), will be nil. However, any disputed related to any transaction done in in E-NAM shall be reported to the authorized mail id, and address of the EFARMARKET within one month of preceding the transaction giving rise to such dispute.

11.7 You understand and agree that we have set the level of our fees and entered into these Terms with you in reliance upon the limitations of liability set forth in these Terms, which allocate risk between E-NAM and the User and form the basis of a bargain between E-NAM and its Users.

11.8 Some jurisdictions do not allow the exclusion of certain warranties or the limitation or exclusion of liability for incidental or consequential damages. Accordingly, some of the above limitations and disclaimers may not apply to you. To the extent we may not, as a matter of applicable law, disclaim any warranty or limit our liabilities, the scope and duration of such warranty and the extent of our liability will be the minimum permitted under such law.

12. PRIVACY

12.1 Your privacy is very important to E-NAM. Our Privacy Policy set out at Part C herein below, explains how we collect, use, protect, and when we share Personal Information (defined at Part C) and other data with others. By using the Platform and/or the Services, you consent to the collection, use, and transfer of your Personal Information (defined at Part C) in accordance with our Privacy Policy, which forms an integral part of these Terms.

13. THIRD-PARTY FEES

13.1 You may incur fees or charges for accessing or using data or services from third parties (such as your internet provider or mobile carrier) in connection with your use of the Platform, the Services or the content. You shall be responsible to pay for all such fees.

14. GOVERNING LAW AND JURISDICTION

14.1 If any dispute, controversy or claim arises out of or in connection with these Terms, including any question regarding its existence, validity or termination arising out of or in connection with this Terms (a "Dispute"), E-NAM and the User shall use all reasonable endeavours to resolve the matter amicably. If either party gives the other party notice that a Dispute has arisen and the two parties are unable to resolve the Dispute within fifteen (15) Working Days of service of the notice, then the Dispute shall be referred to the senior executive officers of E-NAM and the User, if the User is a registered or a corporate entity, (however, if the User is an individual, then the User himself), who shall attempt to resolve the Dispute. Neither E-NAM nor the User shall resort to arbitration against the other Party under this Agreement until fifteen (15) Working Days after such referral to a senior executive officer of E-NAM and/or the User, as the case may be.

14.2 All Disputes, which are unresolved pursuant to the preceding Clause 14.1 and which a party wishes to have resolved, shall be referred upon the application of either party to and finally settled in accordance with the rules of the Arbitration and Conciliation Act, 1996 and amendments thereto, unless otherwise specified in these Terms, (the "Rules") in force at the date on which these Terms were published, which Rules are deemed to be incorporated by reference to this clause. The number of arbitrators shall be three (3). One (1) arbitrator shall be appointed by the User and one (1) arbitrator shall be appointed by E-NAM, and together the two (2) arbitrators so appointed shall appoint the third (3rd) arbitrator. No officer, director, shareholder, employee,

representative or relative or related party of any party may be nominated or appointed as an arbitrator.

14.3 The seat of the arbitration shall be Delhi. The language of this arbitration shall be English and any document not in English submitted by any party shall be accompanied by an English translation. A written transcript of the proceedings shall be made and furnished to the parties. Notwithstanding anything to the contrary contained herein, in the event various Disputes arise in relation to the same or substantially similar set of facts, controversy or claim, the parties undertake that all such Disputes shall be dealt with under the same arbitral proceeding and separate arbitral proceedings shall not be initiated with respect to each such Dispute. To the extent that separate arbitral proceedings are initiated with respect to the same Dispute, all such proceedings shall be consolidated and dealt with by one arbitral tribunal.

14.4 The arbitrators shall have the power to grant any legal or equitable remedy or relief available under law, including injunctive relief (whether interim and/or final) and specific performance and any measures ordered by the arbitrators may be specifically enforced by any court of competent jurisdiction.

14.5 Any award of the arbitrator or arbitral tribunal, as the case may be, pursuant to this Clause shall be in writing and shall be final, conclusive and binding upon the parties, and the parties shall be entitled (but not obliged) to enter judgment thereon in any one or more of the highest courts having jurisdiction.

14.6 During any arbitration under this Clause except for the matters under Dispute, the parties shall continue to exercise their remaining respective rights and fulfil their remaining respective obligations under these Terms or any other agreement between the User and E-NAM.

14.7 Each party shall participate in good faith to reasonably expedite (to the extent practicable) the conduct of any arbitral proceedings commenced under these Terms.

14.8 The arbitrators shall decide on and apportion the costs and reasonable expenses (including reasonable fees of counsel retained by the parties) incurred in the arbitration. Subject to this sub-clause, the User (on the one hand) and E-NAM (on the other hand) shall share equally in the costs of the arbitrator's or arbitral panel's fees, as the case may be, but shall bear the costs of their own legal counsel engaged for the purposes of the arbitration.

14.9 No action, lawsuit or other proceeding (other than proceedings for the confirmation or enforcement of an arbitration award, an action to compel arbitration) shall be brought by or between the parties in connection with any matter arising out of or in connection with these Terms and conditions provided that the parties shall have the right to approach the courts in Guntur, Andhra Pradesh, unless otherwise specified in any mutually agreed terms between the concerned parties, to seek interim or injunctive relief during the pendency of any arbitration under these Terms.

14.10 Subject to the remaining provisions of these Terms, the parties agree that the courts in Delhi shall have jurisdiction with respect to any judicial proceeding's ancillary to any arbitration hereunder, including but not limited to any proceeding to compel arbitration, to obtain interim relief in aid of arbitration, or to determine the validity and enforceability of any award, and each of the parties irrevocably submits to such non-exclusive jurisdiction. Notwithstanding the above, application may be made by any party to any court having jurisdiction wherever situated for enforcement of any award or judgment or the entry of whatever orders are necessary for such enforcement.

14.11 Notwithstanding anything to the contrary herein, nothing in this Clause shall prevent E-NAM from seeking interim or permanent injunctive relief or

taking any other action in any court to enforce or protect its Intellectual Property rights, including but not limited to any action for money damages and/or equitable relief, including but not limited to injunctive relief.

15. **OTHER PROVISIONS**

15.1 These Terms (together with the E-NAM's Privacy Policy, the Auction Terms, the Agreement between concerned parties (applicable to any Buyers and Sellers who have separate agreement mutually accepted among themselves), any other agreements to be added by E-NAM and any other policies we publish constitute the entire agreement and understanding between you and E-NAM , relating your access to and use of the Platform and/or Services, and they collectively supersede all prior understandings, communications or agreements, written or oral, between you and E-NAM on your use of the Platform and/or the Services.

15.2 You acknowledge that in accepting and agreeing to the Terms, you have not relied on, and shall have no remedy in respect of, any statements, assurance, representation, or warranty (whether of fact or of law and whether made innocently or negligently) made other than as set out in these Terms and/or any other E-NAM policy.

15.3 Under no circumstances shall **E-NAM** be held liable for any delay or failure in performance due, in whole or in part, to any acts of nature or other causes beyond our reasonable control.

15.4 The failure by E-NAM to enforce any right or provision of these Terms shall not prevent E-NAM from enforcing such right or provision in the future.

15.5 A waiver of any of these Terms will only be effective if it is in writing and signed by an authorized representative of E-NAM. No delay, omission or indulgence shall constitute a waiver of E-NAM's rights under these Terms.

15.6 If any provision of these Terms is found to be unlawful, illegal, void, invalid or unenforceable (in whole or in part), then that provision will be deemed severable from these Terms and shall not affect the enforceability of any other provisions, and the remainder of these Terms shall continue in full force and effect.

15.7 You shall not assign, transfer or novate your rights or obligations under these Terms to third parties, save without the written consent of E-NAM, which consent may be withheld for any or no reason at our sole discretion.

15.8 A person who is not a party to any agreement made under these Terms shall have no right under these Terms.

16. CONTACT/NOTICE

16.1 Any notice or other communication to be given or served under, or in connection with, these Terms shall be in English or Telugu and in writing, and it shall be transmitted by: (a) personal hand delivery; (b) recognized express courier service; (c) the postal service; (d) return receipt or (e) electronic mail to E-NAM at the address/ contact details set out below. Notice given by personal service or express courier service shall be deemed effective on the date it is delivered to and received by E-NAM, and notice sent by postal service shall be deemed effective on the third day following its placement in the mailbox addressed to E-NAM. Notice sent by electronic mail shall be deemed to be effective on the next Working Day.

To E-NAM

Small Farmer's Agri-Business Consortium (SFAC)

NCUI Auditorium Building, 5th Floor, 3, Siri Institutional Area,

August Kranti Marg, Hauz Khas, New Delhi - 110016.

Email: **nam@sfac.in**

